

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

MARJORIE CLEARY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
"JOHN" CUMMINGS, NYPD OFFICER "JOHN"
BARAN and NYPD OFFICER "JOHN" AUSTIN,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 7, 2018

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
MARJORIE CLEARY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD OFFICER
“JOHN” CUMMINGS, NYPD OFFICER “JOHN”
BARAN and NYPD OFFICER “JOHN” AUSTIN,

Defendants.

----- X

Plaintiff, by her attorneys SIVIN & MILLER, LLP, as and for her complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Richmond, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That on or about December 16, 2016, but in any event prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that on or about April 19, 2017 an amended notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and the defendants have neglected and/or refused to make adjustment or payment

thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendants NYPD Officers "John" Cummings (hereinafter "Cummings"), "John" Baran (hereinafter "Baran"), and "John" Austin (hereinafter "Austin"), the first names of which are fictitious and unknown to plaintiff, were and are officers employed by the NYPD and, specifically, the NYPD's 121st Precinct.

6. That at all times herein mentioned, Cummings, Baran, and Austin were acting within the course and scope of their employment with the NYPD.

7. That at all times herein mentioned, Cummings, Baran, and Austin were acting under color of state law.

THE FACTS

8. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

9. That at all times herein mentioned, plaintiff suffered from a physical disability arising out of her multiple sclerosis and autoimmune disease.

10. That on or about November 19, 2016, plaintiff was inside her residence at 25 Wolkoff Lane, Staten Island, NY.

11. That on the morning of November 19, 2016, NYPD officers, including but not limited to Cummings, Baran, and Austin (hereinafter referred to collectively as "the officers"), arrived en masse at plaintiff's residence and, without any legal justification, violently pounded their fists and other devices against claimant's door and engaged in other actions that were designed to

menace, threaten, alarm, and place in imminent fear the occupant or occupants of the premises.

12. That as a result of the officers' actions, plaintiff was placed in imminent fear for her life and safety.

13. That as a result of the actions of the officers, plaintiff was caused to suffer an exacerbation of symptoms relating to her autoimmune disease.

14. That as a result of the actions of the officers, plaintiff was caused to endure pain and suffering and a loss of enjoyment of life, and will continue to so suffer in the future.

15. That as a result of the actions of the officers, plaintiff's residence was damaged.

16. That the actions of the officers were intentional and malicious in nature.

17. That the actions of the officers demonstrated a reckless disregard for the safety and rights of plaintiff.

18. That the actions of the officers demonstrated a failure to exercise reasonable care in the course of their duties as police officers.

19. That the actions of the officers, even if otherwise legal, were undertaken without any excuse or justification.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault)

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That the aforementioned actions of the officers constitute an assault on plaintiff for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Prima Facie Tort)

22. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

23. That the aforementioned actions of the officers constitute a prima facie tort for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligence and Recklessness)

24. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

25. That the aforementioned actions of the officers constitute negligence and recklessness, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
CUMMINGS, BARAN and AUSTIN
(42 USC § 1983 Claim Arising From Fourth and Fourteenth Amendment Violation)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That the aforementioned actions of Cummings, Baran, and Austin violated plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Cummings, Baran, and Austin.

30. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Cummings, Baran, and Austin, and attorney's fees against defendants Cummings, Baran, and Austin, together with the costs and disbursements of this action.

Dated: New York, New York
February 7, 2018

Yours, etc.
SIVIN & MILLER, LLP

By _____
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

Index No. Year 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

MARJORIE CLEARY,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

Defendants.

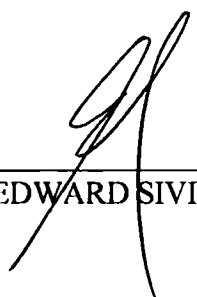
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 7, 2018